Form
ST-108E
State Form 48841
(R6 / 5-23)

Indiana Department of Revenue

Certificate of Gross Retail or Use Tax EXEMPTION for the Purchase of a Motor Vehicle or Watercraft

NAME OF DEALER	Dealer's Registered Retail Merchant Certificate (RRMC) Number _____ - _____ TID (10 digits) LOC (3 digits)		
Dealer's Federal Employer Identification Number (FEIN) (9 digits)	Dealer's License Number (7 digits)		
Address of Dealer	City	State	ZIP Code
NAME OF PURCHASER(S) (PRINT OR TYPE)	SSN, TID, or FEIN **(Mandatory)**		
Address of Purchaser	City	State	ZIP Code

Vehicles Identification Information of Purchase

Vehicle Identification Number (VIN) or Hull Identification Number (HIN)	Year	Make	Model/Length

Calculation of Purchase Price

Calculation of Purchase Price lines 1, 2, and 3 must be completed for all exempted purchases.

1. Total Purchase Price	1.	
2. Trade-Allowance (Like-kind exchanges only)	2.	
3. Net Purchase Price (Line 1 minus Line 2)	3.	

Trade In Information

Vehicle Identification Number (VIN) or Hull Identification Number (HIN)	Year	Make	Model/Length

New Resident Statement - Must be completed if Exemption 8 is claimed (see reverse side).

I certify that I became a resident of INDIANA on (mm/dd/yyyy) _____.

My previous State of Residence was _____. I hereby certify that the above statement is true and correct.

Date _____ Signature of Owner _____

Sales/Use Tax Worksheet - To be completed if Sales and/or Use Tax was paid to a state other than Indiana, Exemption 15. See reverse side.

Date of Purchase:

1. Purchase price of property subject to sales/use tax	1.	
2. Indiana sales/use tax due: Multiply Line 1 by sales/use tax percentage (7%)	2.	
3. Credit for sales tax previously paid to another state (Do not include flat fees, local, and/or excise taxes.) In what state was the tax paid? _____	3.	
4. Total amount due: Subtract Line 3 from Line 2 (Line 3 can not exceed Line 2)	4.	

Direct Relative Identification Exemption - Must be completed if Exemption 11 is claimed (see reverse side).

Name(s) on original title _____ Relationship of above parties _____

Name(s) being added/deleted _____

Public Transportation Exemption - Must be completed if Exemption 6 is claimed and you are not a school bus operator.

U.S. Department of Transportation (USDOT) Number _____

I certify that the above vehicle or watercraft is exempt from sales/use tax under exemption number _____ (enter the corresponding exemption number from the reverse side). I also certify that any sales tax credit shown as paid to an out of state dealer using Exemption 15 was actually collected by the dealer and the dealer has not provided the buyer with a check to be paid to the BMV. I understand that making a false statement on this form may constitute the crime of perjury.

Date _____ **Signature of Purchaser** _____

General Information

INDIANA CODE 6-2.5-9-6 requires that a person titling a vehicle or watercraft present certification indicating the state gross sales and use tax has been paid; otherwise, the payment of the tax must be made directly to a Bureau of Motor Vehicles license branch.

If NONE of the exemptions apply to the purchase, Form ST-108 must be completed by the dealer and the purchaser to indicate that the sales/use tax was collected by the dealer. The dealer is then required to submit the sales/use tax to the Department of Revenue.

A purchaser's identification number (SSN - Social Security Number, TID - Indiana Taxpayer Identification Number, FEIN - Federal Employer Identification Number) is mandatory to claim an exemption. Calculation of Purchase Price lines 1, 2, and 3 must be completed for all exempted purchases. The exemption claim is not valid without providing a required identification number and Purchase Price information. Exemptions available are:

1. Vehicles or watercraft purchased by Indiana or Federal governmental units or their instrumentalities.
2. Vehicles or watercraft purchased by nonprofit organizations operated exclusively for religious, charitable, or educational purposes and using the vehicle for the purpose for which such organization is exempt. The applicant MUST indicate its 13 digit Indiana TID and LOC number on the front of the form. **The nonprofit name must be on the title to claim this exemption.**
3. Issue title for the sole purpose of adding lien holder information. This exemption is not available to add, delete, or change the name on a title.
4. Trucks, not to be licensed for highway use, and to be directly used in direct production of manufacturing, mining, refining or harvesting of agricultural commodities. Ready-mix concrete trucks are exempt under this paragraph even though they are to be licensed for highway use. **Vehicles registered with *farm plates* are not exempt.**
5. Sales of motor vehicles or watercraft to Registered Retail Merchants acquiring the vehicles or watercraft to rent, or lease to others and whose ordinary course of business is to rent or lease vehicles or watercraft to others.
6. Vehicles or watercraft to be predominately used for hire in public transportation (hauling for hire). Your USDOT number must be shown on the reverse side of this form. Predominate use is greater than 50%.
7. Vehicles or watercraft transferred from one individual to another with no consideration involved or received as outright gift or inheritance. Assumption of loan payments by the purchaser constitutes consideration and is therefore NOT exempt unless the transferred party was listed on the original security agreement. **A copy of the original security agreement must be submitted with the title paperwork.**
8. **Vehicles** previously purchased, titled and licensed in another State or Country by a bona fide resident of that State or Country, who subsequently has become an Indiana resident, are exempt from Indiana sales/use tax upon titling and registration of the vehicle in Indiana. **Watercraft** previously purchased, titled, or licensed in another state, by a bona fide resident of that state, who subsequently has become an Indiana resident, are exempt from sales/use tax upon titling or registration of the watercraft in Indiana. The **New Resident Statement** on the front of the form MUST be completed.
9. New or used vehicles or watercraft purchased by a licensed dealer to be immediately placed into inventory for resale. Non-Indiana dealers must enter both their FID number and their state's Dealer License Number on this form in lieu of the Indiana TID number if they are not registered with the Indiana Department of Revenue. **Note: Only motor vehicle dealers that possess a manufacturer's franchise to sell particular vehicles may purchase <u>new</u> motor vehicles of that particular franchise type. If a dealer does not possess a manufacturer's franchise to sell the <u>new</u> vehicle purchased, the dealer must pay sales tax and the resale exemption is invalid. (IC 6-2.5-5-8)**
10. Vehicles or watercraft, not to be licensed for use, which:
    - Are eligible for a repossession title issued by the State of Indiana as a result of a bona fide credit transaction; or
    - Are being titled by an insurance company as the result of an insurance settlement. A salvage brand is not required for this exemption if the vehicle does not meet the requirements of IC 9-22-3-3.
11. Transactions consisting of adding or deleting a spouse, child, grandparent, parent, or sibling of the owner of a motor vehicle only per IC 6-2.5-5-15.5. **The Direct Relative Identification Statement on the front of the form MUST be completed.**
12. Vehicles or watercraft won as a prize in a raffle or drawing which were previously titled by a qualified nonprofit organization. A valid Federal Miscellaneous Income Statement, Form 1099-MISC or an affidavit completed by the nonprofit organization must be submitted with the title paperwork in order for this exemption to be claimed. The affidavits must state the nonprofit organization name and exemption number, the winner's name, address and Social Security number and the fair market value of the vehicle awarded as the prize.
13. Redemption of repossessed vehicles or watercraft by the original owner.
14. Indiana Department of Revenue use only. This exemption may not be used unless authorized by the Department by calling 317-232-3425, and selecting option 5 for Business Tax Compliance. A complete copy of each transaction claiming this exemption must be sent to DOR, Audit and Compliance Support.
15. Sales tax paid to a non-BMV licensed dealer. The seller may be either an Indiana seller or an out of state seller. This amount will be used as a nonrefundable credit against the amount of Indiana sales tax due.

This agency is requesting the disclosure of your Social Security number in accordance with IC 4-1-8-1.
Disclosure is mandatory; this record cannot be processed without it.